

The Prevention Of Cruelty (Capture Of Animals) Rules, 1972

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The Prevention Of Cruelty (Capture Of Animals) Rules, 1972

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The Prevention Of Cruelty (Capture Of Animals) Rules, 1972

Rule THE-PREVENTION-OF-CRUELTY-CAPTURE-OF-ANIMALS-RULES-1972 of 1972

Published on 13 March 1979

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The Prevention Of Cruelty (Capture Of Animals) Rules, 1972

Published vide S.O. 1056, dated 13.3.1979, published in the Gazette of India, Part II, Section 3(ii), dated 24.3.1979.

19.

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Whereas a draft of the Prevention of Cruelty to Animals (Capture of Animals) Rules, 1978 was published as required by clause (i) of sub-section (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), at pages 139-140 of the Gazette of India, Part II, Section 3, sub-section (ii), dated the 13th January, 1979 under the notification of the Government of India in the Ministry of Agriculture and Irrigation (Department of Agriculture) No. 14-19/76 LDI, dated the 30th December, 1978 inviting objections and suggestions from all persons likely to be affected thereby within a period of forty-five days from the date of the said notification in the Official Gazette.

And whereas the said Gazette was made available to the public on the 13th January, 1979.

And whereas no objections and suggestions from the public on the said draft have been received.

Now, therefore, in exercise of the powers conferred by clause (i) of sub-section (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Prevention of Cruelty (Capture of Animals) Rules, 1979.

2.

Capture of birds .-No bird shall be captured for the purpose of sale, export or for any other purpose except by net method.

Explanation .-A bird is said to be captured by the net method if in its capture the following contrivance is used, namely, a contrivance made of spun thread which is soft, pliable and sufficiently strong, like cotton, jute or any synthetic fibre, woven in such a way as to form a mesh of suitable size so that the bird is captured without any injury being caused to it.

3.

Capture of other animals .-(1) No animal shall be captured for the purpose of sale, export or for any other purpose except by sack and loop method:

Provided that an animal which cannot be captured by reason of its size, nature of other condition or circumstance by the sack and loop method, may be captured with the help of tranquiliser guns or by any other method which renders the animal insensible to pain before capture.

(2)

Nothing in this rule shall apply to the capture of birds.

Explanation .-An animal is said to be captured by the sack and loop method if in its capture the following contrivance is used, namely, a strong canvass in the form of sack, not less than 92 cms. in length and 138 cms in diameter, which has a smooth rope, not less than 5.5 meter in length passing through ten or more rings of not less than 4 cms. in diameter each attached at the open end, thus forming a loop, the sack having small holes at convenient places to enable the animal to breathe during captivity, and the animal is captured by the sack being thrown on it and secured by having the loop pulled.

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